

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 30, 2026
8:30 AM/1:30 PM

11. SCOTT YODER V. JENNIFER YODER

PFL20180901

On February 6, 2026, Petitioner filed a Request for Order (RFO) seeking child support, spousal support, and support arrears. He filed his Income and Expense Declaration concurrently therewith. He filed another Income and Expense Declaration on February 23rd. There is no Proof of Service for these documents. There is a Notice and Acknowledgment of Receipt, though it is signed by Respondent's attorney, not Respondent. This is a post-judgment request for support orders and therefore, service was required to comply with Family Code § 215.

Despite the defect in service, Respondent filed a Responsive Declaration to Request for Order and her Income and Expense Declaration on April 23rd. Both documents were served on April 21st.

Petitioner is requesting the reduction or termination of spousal support. He further requests \$6,365.34 in support arrears associated with the payments of expenses for the children.

Respondent opposes the requests. However, in the event the court is inclined to alter support, Respondent requests an evidentiary hearing. Finally, she asks for \$10,000 in attorney's fees pursuant to Family Code § 2030.

After reviewing the filings, the court finds that the issue regarding arrears requires the taking of additional evidence. Likewise, in facing a request to amend permanent spousal support, the court is required to take evidence on, and make findings regarding the Family Code § 4320 factors. As such, the parties are ordered to appear to select dates for an evidentiary hearing.

Regarding the request for attorney's fees, the public policy of Family Code section 2030 is to provide "at the outset of litigation, consistent with the financial circumstances of the parties, parity between spouses in their ability to obtain effective legal representation." *In Re Marriage of Keech*, 75 Cal. App. 4th 860, 866 (1999). This ensures each party has access to legal representation to preserve each party's rights. It "is not the redistribution of money from the greater income party to the lesser income party," but rather "parity." *Alan S. v. Sup. Ct.*, 172 Cal. App. 4th 238, 251 (2009). In the face of a request for attorney's fees and costs, the court is to make findings on "whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties." Fam. Code § 2030(a)(2).

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Here, the request for attorney's fees is granted. There is a significant disparity in income between the parties and Petitioner does have the ability to pay for the attorney's fees of himself and Respondent. Petitioner is ordered to pay \$10,000 directly to Respondent's attorney as and for attorney's fees. This amount may be paid in one lump sum or in monthly increments of \$2,500 with the first payment due no later than May 15th and payments continuing thereafter on the 15th of each month until paid in full (approximately 4 months). If any payment is missed or late the entire amount shall become immediately due and payable with legal interest.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #11: THE PARTIES ARE ORDERED TO APPEAR TO SELECT DATES FOR AN EVIDENTIARY HEARING.

PETITIONER IS ORDERED TO PAY \$10,000 DIRECTLY TO RESPONDENT'S ATTORNEY AS AND FOR ATTORNEY'S FEES. THIS AMOUNT MAY BE PAID IN ONE LUMP SUM OR IN MONTHLY INCREMENTS OF \$2,500 WITH THE FIRST PAYMENT DUE NO LATER THAN MAY 15TH AND PAYMENTS CONTINUING THEREAFTER ON THE 15TH OF EACH MONTH UNTIL PAID IN FULL (APPROXIMATELY 4 MONTHS). IF ANY PAYMENT IS MISSED OR LATE THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE WITH LEGAL INTEREST.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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12. VELEN AMBROSE V. JUSTUS AMBROSE

24FL0097

On April 3, 2025, the court adopted its tentative ruling, except for the portion regarding the bonus table. The court set a further review hearing on the issue of the bonus table on June 5, 2025. The parties have stipulated to continue the review hearing multiple times, most recently on February 19, 2026, to continue the matter to the present hearing.

Neither party has filed a supplemental declaration.

The court lifts its stay on the bonus table portion of the prior tentative ruling. The court also finds that both parties earn income in addition to their respective base salaries of \$13,704 per month for Petitioner and \$19,704 per month for Respondent. As such, the court is adopting the two-way bonus table which is attached as Exhibit F to Petitioner's Reply Declaration filed on March 26th. Commencing on January 1, 2025, the parties are to reconcile their bonus income in accordance with the bonus table on a quarterly basis. Parties are ordered to exchange paystubs for the quarter no later than 7 days after the end of the quarter. Bonus payments are due, if any, no later than 30 days from the end of each quarter.

The court reserves on the bonus arrears calculations.

All prior orders not in conflict with this order remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #12: THE COURT LIFTS ITS STAY ON THE BONUS TABLE PORTION OF THE PRIOR TENTATIVE RULING. THE COURT ALSO FINDS THAT BOTH PARTIES EARN INCOME IN ADDITION TO THEIR RESPECTIVE BASE SALARIES OF \$13,704 PER MONTH FOR PETITIONER AND \$19,704 PER MONTH FOR RESPONDENT. AS SUCH, THE COURT IS ADOPTING THE TWO-WAY BONUS TABLE WHICH IS ATTACHED AS EXHIBIT F TO PETITIONER'S REPLY DECLARATION FILED ON MARCH 26TH. COMMENCING ON JANUARY 1, 2025, THE PARTIES ARE TO RECONCILE THEIR BONUS INCOME IN ACCORDANCE WITH THE BONUS TABLE ON A QUARTERLY BASIS. PARTIES ARE ORDERED TO EXCHANGE PAYSTUBS FOR THE QUARTER NO LATER THAN 7 DAYS AFTER THE END OF THE QUARTER. BONUS PAYMENTS ARE DUE, IF ANY, NO LATER THAN 30 DAYS FROM THE END OF EACH QUARTER.

THE COURT RESERVES ON THE BONUS ARREARS CALCULATIONS.